

Tentative Rulings

August 11, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Wells Fargo Bank, N.A., v. Sanchez*, Case No. CIVSB2528608
Plaintiff's Motion for Judgment on the Pleadings
8/11/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** to allow movant to file a supplemental declaration showing compliance with the meet-and-confer requirement.

Importantly, before filing a motion for judgment on the pleadings (JOP), the moving party "shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion" (Code Civ. Proc., § 439.) Here, the declaration submitted in support fails to assert compliance with the statute. Rather, it simply asserts a letter outlining Plaintiff's position on JOP was sent and not responded to. (See Lopez Decl., ¶¶4-6.) At a minimum, a declaration needs to show attempts to satisfy the code's "in person, by telephone, or by video conference" requirement. The movant will file a supplemental declaration at least ten court days prior to the next hearing.

15. *Boyer, et al, v. Cambridge Sierra Holdings, LLC, et al*, Case No. CIVSB2522108
Plaintiffs' Motion to Deem Admitted Matters in Requests for Admissions, Set One
8/11/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

Plaintiffs served their first set of discovery on Defendant Cambridge Sierra Holdings (Cambridge) on December 31, 2025. This first set of discovery included the at-issue Requests for Admissions, Set One. (Needelman Decl., ¶¶3-5.)

Responses were due on February 3, 2026, but no responses were received. (*Id.*, ¶6.) Plaintiffs' counsel sent an email regarding the failure to respond on February 6, 2026, and gave Defendant a 2-week extension. (*Ibid.*) Again, no responses came by the deadline. (Needelman Decl., ¶8.) Plaintiff's counsel then gave a deadline of March 13, 2026 for responses to be provided, indicating that these motions would be filed thereafter. (*Id.*, ¶9.) This motion followed.

"The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) "There is no relief under section 473." (*Ibid.*) "The defaulting party is limited to the remedies available in (CCP § 2033.280)." (*Ibid.*) "The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted." (*Demyer, supra*, 36 Cal.App.4th at p. 395.) "The nonresponding party then has until the 'hearing on the motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before the hearing." (*Ibid.*) "In that instance the court has